FAMILY COURT OF THE STATE OF NEW YORK
COUNTY OF WESTCHESTER

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IN THE MATTER OF:

TARA KATELYN WALSH,

Petitioner,

Vs. Family Unit No.:154703
Docket Nos.:
V-07641-18
O-12635-19
V-07641-18/19F

STEPHEN GRANT RUSSELL,

Respondent.
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February 6, 2020

HELD AT: White Plains Family Court
111 Dr. Martin Luther King Jr. Blvd.
White Plains, New York 10601

BEFORE: HONORABLE NILDA MORALES HOROWITZ, Part 23

APPEARANCES: SCOTT STONE, ESQ.
Attorney for Tara Katelyn Walsh

MASSIMO DIFABIO, ESQ.
Attorney for Stephen Grant Russell

JENNIFER MARIE M. JACKMAN, ESQ.
Attorney for the Child

TARA KATELYN WALSH,
Petitioner

Digitally Recorded Proceeding transcribed by:
Valeri Wilson, Transcriber
(A) Aarons Court Reporting
175 Main Street, Suite 515
White Plains, NY 10601

Public copy: the child's legal name is shown as E.V.; private street addresses are removed. Otherwise unchanged.

(3:28:41 p.m.)

COURT OFFICER: Your Honor, this is case numbers 19 through 21 on today's calendar in the matters of Walsh and Russell. Counsel, state your appearances.

MR. STONE: Scott Stone, of counsel for John Guttridge, assigned counsel for Tara Walsh who's standing to my right. Good afternoon, Your Honor.

MR. DIFABIO: For Respondent, Stephen Russell, Max DiFabio. Good afternoon, Your Honor.

MS. JACKMAN: Good afternoon, Your Honor, Jennifer Jackman, attorney assigned to represent E.V. [redacted]

COURT OFFICER: Ma'am, please raise your right hand. Do you swear or affirm to tell the truth?

MS. WALSH: I do.

COURT OFFICER: Your name and address unless it's confidential.

MS. WALSH: Tara Walsh, [redacted], Chappaqua, New York, 10514.

COURT OFFICER: You may be seated, ma'am.

THE COURT: Okay. This matter's before me for the purpose of a conference. First of all, I have notes from the last appearance and Mr. DiFabio, your client was ordered to appear or else his petitions would be dismissed and other things were discussed. So where is he?

MR. DIFABIO: Your Honor, that's true, and my client, initially, I sent a letter to the Court asking that my client appear by phone which was denied by the Court. The reasons for his wanting to appear by phone was that his fiancé had surgery and couldn't make it.

THE COURT: Counsel, and I understand and I don't want to cut you off, but I'm not going to burden the record with, this appointment, this court conference was set December 10th. So whatever his fiancé had to do could've happened before today's court date or after, but December 10th, he was given notice that this is the court appearance, so the Court will not accept any excuse for his failure to be here.

MR. DIFABIO: Right, but Judge, nonetheless, he's currently, according to an email I received last night, Jet Blue confirmation. He was due to land at 3 p.m. today at JFK. And I know court closes at 4:30 sharp.

THE COURT: Yes, somehow I don't think that he planned this out very well, Counsel, 'cause anybody knows that if you land at JFK you're not going to be anywhere for three hours, even across the block, so no.

MR. DIFABIO: Judge, nonetheless, I would ask you to adjourn today if we could?

THE COURT: That's not happening. Okay. All right. A couple of things. There was an issue as to a

forensic that had to have been paid by your client so that we could obtain the forensic. Was that done, Counsel?

MR. DIFABIO: Your Honor, I was able to get my client to pay into my escrow account what I believe to be the balance of what's owed to Dr. Heimowitz. However, my client, the reason why my client wasn't paying Dr. Heimowitz is, one, that he was relying on some information he garnered from Ray Griffin, who has since been unlicensed in his profession and he feels that report is tainted and, secondly, my client believes there's about 350 pages of evidence about the Walsh family abuse that should be considered by Dr. Heimowitz, but hasn't been considered by Dr. Heimowitz so he would like you to issue an order with Dr. Heimowitz, A, striking Dr. Griffin's input, if any, and two, considering all of the abuse allegations on the Walsh side of the family.

MR. STONE: May I?

THE COURT: Yes, Counsel.

MR. STONE: Judge, first with regard to Mr. Russell's failure to appear today, even assuming he was on a flight scheduled to land at JFK at 3:00, last time I checked, this court appearance was scheduled for 2:30, but you know, so I'm not exactly sure how that math works out there, you know, on a clock, but putting that issue aside, he's not here today. His petitions should be dismissed as

Your Honor indicated last time on the record. The forensic should've been paid. This case has not moved forward because the forensic hasn't been paid. He was ordered to pay a hundred percent and as for whatever weight anybody's evidence reports, exhibits are to be given by Dr. Heimowitz. That's up to him and whatever weight this Court gives, this Court obviously can sort through that on its own and I think this request is just a whole bunch of smoke and mirrors as this case has kind of been since the very, very beginning. Mr. Russell just wants to control and manipulate everybody throughout this proceeding including, and especially, my client and as evidenced by the fact that we've gone through five supervisors. Five.

MS. JACKMAN: Okay. Just briefly, Judge. I'm not clear as to why the documents that Mr. Russell refers to hasn't been provided to Dr. Heimowitz. The documents are in his possession, it's my understanding, and the order was clear that either party could provide documents to Dr. Heimowitz as long as it was provided to all counsel on the case, so I'm not sure why that wasn't done in these many, many months.

With respect to the forensic report or Dr. Griffin's report, the report was good for both parties. I'm not sure why he's objecting to the report, and I did

say months ago, if he wishes to have a different evaluator, that maybe we should do that, but certainly at this point, we just need to get the report, and the Court will determine what value to give it, but right now, we're just stuck.

MR. DIFABIO: And I can understand that, but Judge, there's also a problem in that we haven't received, we haven't had a turnover of the documents that were given to Dr. Heimowitz by Ms. Walsh. They were never provided to us, according to my file.

THE COURT: Why would you get those documents?

MR. DIFABIO: I don't know, Your Honor. I --

THE COURT: Why would the client feel that he gets those documents? I'm confused.

MR. DIFABIO: I think we're entitled to see whatever they submit, and vice versa, reciprocal.

MR. STONE: That's generally not the way it works, but okay.

MR. DIFABIO: Yes, it is.

MS. JACKMAN: I think it was stated like that in the order, but the issue is that they were exchanging, we did get emails of copies of things that were being given at the time, and I think Mr. Russell wants a summary to make sure that he has everything that was given, but I believe that it was turned over.

THE COURT: Let me just kind of interject here. This sounds to me like a lot of posturing. A lot of posturing, a lot of trying to just avoid, avoid, avoid. I don't do that here. Okay? We need to come to some kind of resolution and I'm not seeing any reason why not to. Your client was not here last time. He's not here now. He's sending you here. As difficult as it is, Counsel, and I recognize your position; it's not an easy one. But he's caused that on you. So you're not in a position to argue much for him at this point. So the Court's here. There's a petition pending by the mother. What is the application made by the Petitioner/Mother?

MR. STONE: The application is by my client, Your Honor, is that she be granted sole legal and physical custody of the subject child and that she be granted a two-year Order of Protection, same terms and conditions that currently stand, permanent Order of Protection subject to visitation, you know, on an appropriate application by the father. Well, I mean, actually he'd have to file a petition to even get that, I would say. He's has no petition pending, so I mean, my client should be awarded an Order of Protection and sole legal and physical custody.

MR. DIFABIO: Your Honor, there is an Order to Show Cause pending that was file yesterday. I understand

it didn't make its way up to the Court yet. So for all intents and purposes, there is a petition pending and Your Honor indicated that she was going to grant some type of visitation.

THE COURT: Well, the only thing that I indicated, Counsel, and we had an off-the-record discussion, is that your client has already had the ability to visit with his child, under a supervised setting. He has not availed himself of that because of whatever position he takes on a supervisor or agency, but that has not been ever taken away, the ability to visit through some kind of supervisor. Now, as you say, or someone just stated, there's been five of them, so I know that he knows a way around getting a supervisor.

MR. DIFABIO: Your Honor, that's a little misleading, not on your part, to say there were five supervisors. They have had a problem with each and every supervisor, including the last one, Claudette LaMelle, which Mr. Guttridge unilaterally fired.

THE COURT: Okay.

MR. DIFABIO: Took it upon himself.

THE COURT: Okay. All right. And listen, that happens. It happens once, it happens twice. Let's go three times. Five times?

MR. DIFABIO: Well, my client had no problem

with the supervisors.

THE COURT: So I'm going to make it real easy because then there's going to be no issue as to a supervisor. I will say that unless the parties identify someone, then the default supervision will be at the Y.

MR. DIFABIO: All right.

THE COURT: So that it will be an ongoing order that he can take advantage of, that visitation through the Y is available to him immediately. If they agree in writing to somewhere else, I will not interfere with that. All right? The Court's not going to supervise their decision, but if they do not agree on an adequate supervisor, then the default will be the Y.

MR. DIFABIO: Yeah, Judge. Your Honor, would you deem my Order to Show Cause a petition so we don't have to go in circles again? Because I'm only going to file another one tomorrow, and there's still the open issue of Dr. Heimowitz who's out there. I don't know what his status is. I've heard that he's finished the report.

THE COURT: But what's the open issue? I mean --

MS. JACKMAN: It's definitely custody.

MR. DIFABIO: Is the report done? We don't, I don't know.

THE COURT: But, okay and again --

MR. DIFABIO: If it is, I'll pay, I'll pay the balance, get the report, we'll continue the case, and then we could all --

THE COURT: What's to continue? That's what I'm getting a little confused with. What's to continue?

MR. DIFABIO: See the genesis of all this, and I'm not the first attorney in the case. The genesis was that there was no bases for Mr. Russell to have supervised visits in the first place; it's not a domestic violence case.

THE COURT: Okay. But we're not going backwards, Counsel. You know, that's the problem, you know, and that might be the case. But right now, what's before me is a history of the parties at the very least the last appearance before me that the supervised visitation had been attempted. As we sit, we've tried it with several supervisors so this is not a foreign situation for your client, so we're not going to undo that. The best thing he could do is to fly over sooner and get some visits done, get half a dozen visits done. Then he wouldn't be in this predicament, if he did what he had been told to do all along which seems to be kind of a problem for him. So this Court's not going to enable him any longer. All right? So as far as the petition, the other thing that the Court will recognize and I understand

that this is not something that your client is going to consent to, but parties that are this, and I'll use the word, dysfunctional, okay, are not able to coparent. Just can't. Court cannot give an order of joint custody to people that don't agree that today is Thursday or can't figure out that a court appearance was for 2:30 and decide to take a plane that lands at 3:30. That's not going to work. So I do not see any possibility for their to be any kind of joint custody here.

However, whenever I issue an order from this court that gives sole custody, and I'll direct this to you, specifically, that does not mean you have carte blanche. That does not mean that you make decisions in a vacuum. That does not mean that you pick up and go and do whatever you want. No. There is a father whether you like it or not. There is a father, and he needs to be kept informed of all issues, major issues dealing with the child's health, education, welfare, travel, and anything that deals with change of school, change of address. You cannot make those decisions and then say, by the way, we did this.

Now, do you need his consent for all of them? Not necessarily, but he has to be informed in a timely manner before any major decision is made with regard to the child.

MS. WALSH: Okay. I've tried to involve him as much as I can, so (inaudible).

THE COURT: Well, and the best way to do that is, and I say this to people all the time and they don't do it, is you need to flood him with information. Information is not a luxury, because then he can't send an attorney here and say I don't know this, I don't know that. You can take out your file and show, yes, you do.

MS. WALSH: Yes.

THE COURT: Here are the emails. Here are the certified mail. Here are the carrier pigeons that I sent. Here's everything.

MS. WALSH: Yeah, yeah.

THE COURT: That's how you do it.

MR. STONE: That's fine, that's fine.

THE COURT: Okay.

MR. DIFABIO: Your Honor --

THE COURT: And the other provision would be that access is available to him at least till any further court appearance, supervised either at the Y or upon an agreed-upon individual or agency. So I do not believe, Counsel, that this prejudices your client in that he will have access to all information with regard to his child and have the ability to visit as well.

MR. DIFABIO: Well, Judge, you would have to

carve out an exception in the Order of Protection. As I understand it, it's a full stay-away presently. Would you please add that the parties may communicate for purposes affecting the child and/or visitation?

MR. STONE: I believe it's in there.

MS. JACKMAN: It's in there now.

MR. STONE: Yeah, my client has no issue with communication regarding the child. It's the, you know, the emails and texts that come back the other way that are usually problematic, but you know, my client has no issue communicating with him and giving him information.

MR. DIFABIO: And, Judge, also my client's mother, who's a wonderful person, has been trying to see her granddaughter and Ms. Walsh makes it difficult for her. I don't want to have to file a petition on that in, too. Would you at least speak to Ms. Walsh about allowing some visitation between my client's mother when it doesn't involve my client who's safely far away in California? But she's come to Chappaqua and is buying a house here to be closer to her granddaughter and is not allowed to see her.

THE COURT: Counsel?

MS. JACKMAN: I believe that I had worked out a schedule where the grandmother was seeing Evie once per week, so I had hoped that that would continue and it would

progress. It's my understanding that the grandmother stopped visiting one time per week, and I haven't heard anything after that.

MR. DIFABIO: In fact, one of the holidays, it was either Christmas or Thanksgiving, I actually invited Grandma to my house because she was alone because she didn't get to see her granddaughter. Had come all the way from San Francisco to see her. She was blocked. I don't know which holiday. I think it was Thanksgiving, maybe. So it could go a lot easier if we could at least have some contact.

THE COURT: Well, look, I'm not going to really impose too much on that because I don't know the dynamic between the child and the grandmother, but I'm hearing that she had the ability to visit once a week. So but for any problem with that, that should continue. If doable, that should continue.

MS. WALSH: Okay.

MR. DIFABIO: I mean, Ms. Walsh should make an effort, because there's been some text messages I've read where it appears, not making any allegations, it appears that Ms. Walsh is the one who's been pulling the carpet out from under my client's mom.

MR. STONE: I mean, my client has requested at least on certain occasions to be there present for the

visit and, obviously, there have been some overtures, and I even personally read text messages earlier where Grandma's like trying to push herself as a supervisor with her son which is, obviously, inappropriate at this point in time and we need, you know, we need assurances that Evie's not going to go into Grandma's house and Dad's all of a sudden just going to pop out of a bedroom and nobody knows.

MR. DIFABIO: No, Judge, that's not going to happen. Counsel misspoke. My client's mother did offer to baby sit the child when Ms. Walsh is out working, and that was the extent of it.

THE COURT: Look, as I said, I'm not going to impose too much here. I think that the grandmother should be part of the child's life as long as it is just her and as long as any interaction between her and this child is simply for her pleasure and enjoyment and does not include the father in any way, shape or form. No FaceTime, no nothing, because then the problem will be that the Court will then remove that access for the grandmother.

MR. DIFABIO: I understand, Judge, I understand.

MR. STONE: My client's only request is that until Evie's more comfortable that my client be present because she doesn't really know who she is, I mean.

THE COURT: Okay. And one of the ways that I

suggest for people to do that. How old's the child again, remind me?

MS. JACKMAN: She just turned two on January 27th.

THE COURT: Okay. That's really, really young. I think the best thing would be a combination of you being present but in the area. Okay? And what I describe is you take the, you take her to one of those, for example, one of those jumping places. You go, but you're away so she doesn't see you. So you're there. You can see her, but she can't see you so that that way she just develops a comfort level with her grandmother.

MS. WALSH: Yeah.

THE COURT: Hey, you go to the mall. Have her walk around with Grandma or in a stroller, whatever. You can see her, but she can't see you. So that you see the interaction and she sees that she's comfortable so you can build on that.

MS. WALSH: Yeah.

THE COURT: All right? So we're not going to call it supervised but Mom will be present for the obvious reasons for comfort, for comfort level, and she will not be seen, but observe. Okay? So work that into the plan.

MR. DIFABIO: Judge, being that I've filed an Order to Show Cause and I'm asking you to adopt it as a

petition, can we have an adjourn date, perhaps?

THE COURT: No, it's the other way around. I'm advancing it to today and I'm addressing your request. You said visitation continues, supervised, either through an agency or agreed upon, and as far as the request for the forensic, your client is ordered to pay the doc, not that I need the forensic. I don't need the forensic.

MR. DIFABIO: Wait, you don't?

THE COURT: No, I don't need the forensic.

MR. DIFABIO: Then what do you need, Judge?

THE COURT: I don't need anything. We're done today.

MR. DIFABIO: I understand, going forward, what do you need? To get my client out of this morass of having to be supervised on his visits, which he feels --

THE COURT: What I need, I'm going to need about a dozen visits or so with a report. Then we can talk and then he can file a petition. Not now. I'm not babysitting this case until he does that. The case ends today with an order that he has supervised visits, and that once he has a number of these visits, there's no magical number, it could be five, it could be six, it could be seven. It depends, but as long as they have consistent access with this child then he can file a petition to move to the next step, and the Court will

happily entertain that. But that will not happen in a month or two.

MR. DIFABIO: With respect to your deciding the issue of custody, it's temporary, of course, right?

THE COURT: Oh, nope. Nope, no temporary. Again, she is under an affirmative order to keep him informed of all major issues, doctors, dentists, schools, vacations, all of that which is what he would get if he had joint custody.

MR. DIFABIO: I understand.

THE COURT: Okay? Okay. Very good. Thank you.

MR. DIFABIO: Thank you, Your Honor.

MR. STONE: Thank you.

THE COURT: You're going to draw that up?

MS. WALSH: Thank you.

MR. STONE: Can we submit it on notice, Judge?

(3:49:12 p.m.)[PROCEEDING CONCLUDED]

C E R T I F I C A T E

I, Valeri Wilson, certify that the foregoing transcript of proceedings in the White Plains FC, NYS, Walsh V. Russell, File #154703 was prepared using the required transcription equipment and is a true and accurate transcript of the proceedings.

Signature: Valeri Wilson Date: 02/11/2020

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